

No. 7 of 2012

VIRGIN ISLANDS

PROCEEDS OF CRIMINAL CONDUCT (AMENDMENT) ACT, 2012

ARRANGEMENT OF SECTIONS

Section

- 1.** Short title.
- 2.** Section 27 amended.
- 3.** Section 28 amended.
- 4.** Section 29 amended.
- 5.** Section 30 amended.
- 6.** Section 30A amended.
- 7.** Section 31 amended.
- 8.** Section 36 amended.
- 9.** Section 41 amended.

No. 7 of 2012

**Proceeds of Criminal Conduct
(Amendment) Act, 2012**

**Virgin
Islands**

I Assent

**(Sgd.) Boyd McCleary, CMG, CVO
Governor**

9th August, 2012

**VIRGIN ISLANDS
No. 7 of 2012**

An Act to amend the Proceeds of Criminal Conduct Act, 1997 (No. 5 of 1997).

[Gazetted 30th August, 2012]

ENACTED by the Legislature of the Virgin Islands as follows:

- | | | |
|--------------------------------------|----|---|
| Short title. | 1. | This Act may be cited as the Proceeds of Criminal Conduct (Amendment) Act, 2012. |
| Section 27 amended.
No. 5 of 1997 | 2. | Section 27 of the Proceeds of Criminal Conduct Act, 1997 (hereinafter referred to as “the principal Act”) is amended <ul style="list-style-type: none">(a) in subsection (4) by deleting the words “twenty-five thousand dollars” and replacing them with the words “one hundred and fifty thousand dollars”; and(b) in subsection (7) by deleting the words “twenty thousand dollars” and replacing them with the words “one hundred thousand dollars”. |
| Section 28 amended. | 3. | Section 28 of the principal Act is amended in subsection (8) by deleting <ul style="list-style-type: none">(a) in paragraph (a) the words “six months” and “twenty-five thousand dollars” and replacing them with the words “two years” and “two hundred and fifty thousand dollars” respectively; and |

- (b) in paragraph (b) the words “forty thousand dollars” and replacing them with the words “five hundred thousand dollars”.

Section 29
amended.

- 4. Section 29 of the principal Act is amended in subsection (11) by deleting

- (a) in paragraph (a) the words “six months” and “twenty-five thousand dollars” and replacing them with the words “two years” and “two hundred and fifty thousand dollars” respectively; and
- (b) in paragraph (b) the words “forty thousand dollars” and replacing them with the words “five hundred thousand dollars”.

Section 30
amended.

- 5. Section 30 of the principal Act is amended in subsection (4) by deleting

- (a) in paragraph (a) the words “six months” and “twenty-five thousand dollars” and replacing them with the words “two years” and “two hundred and fifty thousand dollars” respectively; and
- (b) in paragraph (b) the words “forty thousand dollars” and replacing them with the words “five hundred thousand dollars”.

Section 30A
amended.

- 6. Section 30A of the principal Act is amended

- (a) in subsection (10) by deleting
 - (i) in paragraph (a) the words “twenty-five thousand dollars” and replacing them with the words “one hundred and fifty thousand dollars”; and
 - (ii) in paragraph (b) the words “forty thousand dollars” and replacing them with the words “five hundred thousand dollars”; and
- (b) in subsection (11) by deleting the words “twenty thousand dollars” and replacing them with the words “one hundred and fifty thousand dollars”.

Section 31
amended.

- 7. Section 31 of the principal Act is amended in subsection (9) by deleting

- (a) in paragraph (a) the words “six months” and “twenty-five thousand dollars” and replacing them with the words “two years” and “two hundred and fifty thousand dollars” respectively; and
- (b) in paragraph (b) the words “forty thousand dollars” and replacing them with the words “five hundred thousand dollars”.

Section 36
amended.

8. Section 36 of the principal Act is amended in subsection (12) by deleting the words “six months” and “twenty thousand dollars” and replacing them with the words “two years” and “one hundred and fifty thousand dollars” respectively.

Section 41
amended.

9. Section 41 of the principal Act is amended in subsection (4) by deleting the words “thirty thousand dollars” and replacing them with the words “one hundred and fifty thousand dollars”.

Passed by the House of Assembly this 24th day of July, 2012.

(Sgd.)Ingrid Moses-Scatliffe,
Speaker.

(Sgd.)Phyllis Evans,
Clerk of the House of Assembly.

